

9:00 AM

Line 3

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses Under C.C.P. Section 2016.090

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Initial Disclosures (C.C.P. section 2016.090) is DENIED.

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on March 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte* advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

B. Legal Standards

Discovery is permitted as to any nonprivileged matter relevant to the subject matter involved in the pending action, subject to proportionality limits. (Code Civ. Proc., §§ 2031.010, 2017.020.)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

California Code of Civil Procedure § 2016.090 establishes a mandatory initial disclosure framework for civil actions filed on or after January 1, 2024. (Code Civ. Proc. section 2016.090.) Under subdivision (a)(1), within 60 days of a demand by "any party to the action," each party that has appeared must provide to the other parties an initial disclosure including: the names and contact information of persons likely to have discoverable information; copies or descriptions of all relevant documents, electronically stored information, and tangible things in the disclosing party's possession; and any insurance policies or contractual agreements under which a judgment may be satisfied or indemnified. (*Id.*)

However, subdivision (c) contains a categorical exemption:

"This section does not apply to any party in the action who is not represented by counsel." (*Id.* at Section 2016.090 subd. (c).)

Because of subdivision (c)'s reference to the whole section, by its plain language the entire statutory framework of Section 2016.090, including both the obligation to provide disclosures and the mechanism to demand them, is completely inapplicable to parties who are not represented by counsel.

Here, Plaintiff, who is not represented by counsel, moves to compel Defendant David A. Brewer, Former NT Corp., Notify Technology Corporation, Paul F. Dupond, and Robert Polychron "to further amend, disclose and produce documents and information under to CCP section 2016.090." (Notice of Motion, at p. 1.) The statute does not provide Plaintiff the authority to make the Section 2016.090 demand, let alone the authority to move to compel further responses.

The Motion is therefore DENIED.

Sanctions

Defendant's Opposition provides proper notice of a request for monetary sanctions against Plaintiff for misuse of the discovery process pursuant to Code Civ. Proc. sections 2023.010, 2031.310(h). (Opp. at 9:13-17.) Plaintiff's Motion was made without a statutory basis or other authority, so it is a misuse of the discovery process and monetary sanctions are appropriate. Defendants' counsel spent three hours drafting the Opposition to this Motion, at a reasonable rate of \$450 per hour, for a total of \$1,350.00. (Claassen Decl., ¶2.)

Accordingly, the request for sanctions of \$1,350.00 is GRANTED. Plaintiff is ordered to pay sanctions of \$1,350.00 to Defendants thru their attorney of record, within 30- days of the service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 4

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set No. 3

TENTATIVE RULING:

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

Plaintiff Hamid Khazaeli's (Amended and Combined) Motion to Compel Further Responses to RFP Set No. Three (the "Motion") is DENIED.

Plaintiff's Request for Monetary Sanctions is DENIED.

Defendants' Request for Monetary Sanctions is DENIED.

The Court notes that for the discovery at issue here, Plaintiff declares to have served the papers himself, which is improper. (Code Civ. Proc., § 1013a, subd. (1) (affidavit must state one is "not a party to the cause".) Defendants do not object and have responded, so there is no prejudice. The Court finds that the defect has been waived. (*Tate v. Sup. Ct.* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is cautioned that per code, he is not allowed to serve such papers by himself as he is a named party.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on February 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte*